

SENATE No. 2303

The Commonwealth of Massachusetts

PRESENTED BY:

Liz Miranda

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act advancing clean energy equity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Liz Miranda</i>	<i>Second Suffolk</i>	
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/27/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/10/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>5/8/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/10/2025</i>

SENATE No. 2303

By Ms. Miranda, a petition (accompanied by bill, Senate, No. 2303) of Liz Miranda, Steven Owens and Jacob R. Oliveira for legislation to ensure that the benefits of transitioning to clean energy sources are distributed fairly across all communities. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act advancing clean energy equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 29 of chapter 21A of the General Laws, as amended by chapter 239
2 of the acts of 2024, is hereby amended by adding the following two paragraphs:

3 The undersecretary of environmental justice and equity shall have oversight of ensuring
4 an equitable allocation of the benefits of clean energy spending across the Commonwealth, and
5 that such allocation is proportional to the percentage of the population residing in (1)
6 environmental justice populations as defined in section 62 of chapter 30 or (2) any low-income
7 communities designated by the undersecretary for inclusion based on previously developed
8 criteria. The undersecretary, in consultation with a defined working group of environmental
9 justice stakeholders, shall set compliance goals and issue compliance reports on the same
10 schedule for emission limits required under section 4(g) of chapter 21N for delivery of clean
11 energy benefits to environmental justice communities.

The undersecretary shall consult with the environmental justice council as established under section 62L of chapter 30 and any other stakeholders the undersecretary finds appropriate, including additional representatives from environmental justice communities, local governments, clean energy advocates, and public health experts, to develop, review, and update a definition of clean energy benefits. This definition shall account for the net impact of burdens and shall also include consideration of spending and benefits from state clean energy programs, pollution reduction, transportation, economic development, and energy cost reduction. The undersecretary shall be responsible for developing a framework for tracking and monitoring allocation of clean energy benefits across the commonwealth. The undersecretary shall work with the secretary to ensure alignment with these definitions and the framework for social benefits and burdens in section 30. The undersecretary shall coordinate with any agencies overseeing clean energy programs to incorporate these definitions and the framework into the program reviews which they are directed to undertake to monitor and evaluate clean energy programs. All clean energy program reviews beginning on January 1 of the year following the undersecretary's creation of the definition and framework shall detail the amount and allocation of said benefits, and identify any barriers to participation as well as any measures to reduce said barriers, including but not limited to community organization partnerships, streamlined application processes, multilingual options, and no-cost or low cost financing. The level of benefits shall be reviewed and updated every 5 years beginning in 2025. The undersecretary may adopt regulations as deemed necessary for implementation of this section and shall consult with the energy efficiency advisory council as established under section 22 of chapter 25 and the grid modernization advisory council as established under section 92C of chapter 164 to ensure alignment of the definition of benefits and to develop comprehensive guidelines across all programs to address specific challenges for

35 rental properties including but not limited to protections against rent increases or other
36 detrimental impacts after clean energy resources are installed in the property.

37 SECTION 2. The first stakeholder group meeting required under section 1 shall occur not
38 later than January 1, 2026.